NCIP Administrative Order No. 2, Series of 2019

GUIDELINES FOR THE ISSUANCE OF CERTIFICATE OF CONFIRMATION (COC)

PART I. PRELIMINARY PROVISIONS

SECTION 1.Title. This Administrative Order shall be known as "Guidelines for the Issuance of Certificate of Confirmation".

SECTION 2. Rationale. To protect and promote the rights of Indigenous Cultural Communities/Indigenous Peoples (ICCs/IPs) in the field of education, employment, and basic social services through the issuance of Certificate of Confirmation (COC).

SECTION 3. Statutory Basis. These guidelines is promulgated pursuant to Chapters IV and V of Republic Act 8371 in the pursuit of self-governance and empowerment and social justices and human rights for the Indigenous Peoples of the Philippines.

SECTION 4 - Definition of Terms. For purposes of this guidelines, the following terms shall mean or be understood as follows:

a. **IP Membership -** refers to the established relationship based on genealogy of an individual to any ICCs/IP group as defined in Section 3h of the Republic Act 8371.
b. **IP Leader/Elder -** Refers to IP leaders who are recognized by their community and validated by NCIP for the purpose of COC issuance.
c. **Certificate of ICCs/IPs membership (CIPM) —** certificate issued by the resident IP Leader/Elder certifying that an individual is a member of the ICCs/IPs group.
d. **Certificate of Confirmation -** a certification issued by the NCIP affirming the CIPM issued by the IP Leader/Elder to an individual.
e. **COC Register -** refers to a permanently bound book with numbered pages containing a chronological record of the serial number of COC issuances.

SECTION 5. Coverage- This guideline shall govern the issuance of Certificate of Confirmation (COC) to members of ICC/IP following the processes herein provided;

PART II - COC APPLICATION AND ISSUANCE

Section 6. Availment of COC required by national agencies or foreign institutions - All Certificates of Confirmation required by national agencies and foreign institutions shall be issued at the level of the regional director.

Section 7. Issuance of COCs by the NCIP Provincial/City or Service Centers without regular provincial offices. Availment of COCs for local application such as hospitalization, local scholarship, Educational Assistance (EAP of NCIP) and employment shall be issued by the Provincial/City Officer or the Community Service Center Head in provinces without Provincial Offices.

Section 8. Application, Evaluation, Review and Verification and Issuance of the Certificate of Confirmation (COC)

8.1 Application and Required Documents. Personal processing of application for COC issuance shall at all times be required.

The applicant shall complete Index Form-1 and submit the same along with the following documents/requirements:

a. Certificate of IP Membership (CIPM) duly issued by the recognized IP Leader/Elder of the community where the applicant is a member or claims to be a member;
b. Properly filled-up genealogical Form 2 (secured from NCIP);
c. Two copies of 2x2" ID pictures taken at most 6 months prior to the application; and
d. 2 pcs. Documentary stamps.

8.2 Issuance of COCs under exceptional circumstances.

a. Applicants whose immediate family member by descent has a COC previously issued by NCIP of the same Region, he/she shall only present the said COC together with the completed application form and the documents under section 8.1 b, 8.1 c and 8.1 d subject for validation and certification from concerned Provincial Office;
b. Individuals who were previously issued COC validated by the NCIP may request a copy of the same without having to submit the requirement in Section 8.1.a and b. Provided that the new copy being issued may be for another purpose as requested by the individual.
c. In cases where the applicant is included in the CADT List of claimants, the CIPM is not required. Instead a certification from the concerned provincial officer or service center head with no provincial office that he/she is officially included in the CADT List of Claimants indicating the page number shall suffice citing the CADT number, page number and volume number of the recognition book;
d. In exceptional circumstances where the applicant has proof of IP membership but is not covered under this guidelines, the applicant may file a petition with the OEHR for issuance of COC.

8.3 Evaluation – Upon receipt of the application and attached documents/requirements, the COC Focal Person/Committee at the NCIP receiving office shall evaluate the application within three (3) working days to:

a. Examine the submitted documents as to its completeness

b. Compare the CIPM signatories to the existing list of NCIP recognized IP Leader/Elder.

c. Review the Recognition book if the applicant is a member of an ICC/IP group whose ancestral domain has already been issued a certificate of ancestral domain title (CADT) to validate membership of the applicant in the ICC/IP group. If the applicant is not included in the recognition book, but is found to be an actual owner of a portion of the domain the certifying IP Leader/Elder shall provided written explanation why the applicant is not included in the recognition book. The written explanation can be the basis for denial or acceptance. Should the explanation be accepted, the region shall process the inclusion of the applicants to the recognition book with the approval from the Commission; and

d. If the application documents is found in order, endorse to the Provincial Officers/Regional Directors, otherwise if found defective or insufficient return the application documents to the applicant with appropriate instruction and guidance.

8.4 Review and Verification – Upon receipt of the favorable endorsement of the COC Focal Person/Committee, the NCIP CSC Head/Provincial Officer/ Regional Director as provided for in Section 6 and 7 Part II, shall review the:

a. List of recognized IP Elders/Leaders that have authority to issue CIPM to validate the identity and signature of the Elder/Leader.

b. Recognition book to validate membership of the applicant in the ICC/IP group.

8.5 Issuance of COC - Upon findings by the CSC Head City/Provincial Officer/Regional Director, as the case may be, the application is complete and meritorious, he/she shall issue a COC within two (2) working days. The COC shall only be released to the COC applicant or his duly authorized representative.

Section 9. All NCIP Field Offices (Community Service Centers, City/Provincial Offices, and Regional Offices) shall keep track of records of all recognized IP Elder/Leader of all communities within ancestral domain areas and resettled IP communities. Certificate of IP Membership (CIPM) issued by persons other that the recognized IP Elder/Leader where the applicant is a member should not be accepted).

PART III – PROTECTION MECHANISMS

Section 10. The Office of Empowerment and Human Rights shall devise and maintain a database for all approved and denied COCs. The data shall be shared with all regional offices for reference.

All COCs previously issued shall be referred to the appropriate IP Elder/Leader for validation.

Section 11. The OEHR shall devise and assign serial numbers for each region and province.

Section 12. Monitoring and Evaluation. The city/provincial offices and the Community Service Centers with no provincial offices shall submit monthly report of COC's issued for local purposes to the Regional Office and shall inform the same of changes in IP Elders/Leaders supported by Minutes/Resolution/Report with specimen signatures to the regional offices for updating purposes. The regional offices shall provide consolidated issued COCs to the OEHR on a monthly basis.

All COCs previous issued and those issued under these guidelines which have not validated shall be referred by the Regional Office to the appropriate IP Elders/Leader for validation on a quarterly basis.

Section 13. COC Register. The COC focal person shall keep, maintain, protect and provide for lawful inspection as provided in this guidelines, a chronological official COC Register of COC issuances consisting of a permanently bound book with numbered pages. The COC focal person shall keep only one active notarial register at any given time.

PART IV-SANCTIONS AND PENALTIES

Section 14. If an IP Elder/Leader or those purporting to have such authority is found to have issued a CIPM to non-IP individual, he/she shall be delisted and banned from the NCIP roster of recognized

IP elder/leader for COC purposes only. NCIP shall then inform the concerned IP community of the violation for them to act accordingly and to select a replacement.

Section 15. An IP applicant for COC found using false or fraudulent documents shall be prohibited from applying for COC for a 1-year period, from the discovery of the falsehood or fraud.

Section 16. The deliberate processing and endorsement of falsified comments by NCIP personnel shall be a ground for termination.

Section 17. All penalties provide herein shall be without prejudice to other administrative, civil and criminal actions or actions under customary laws that may be filed against him/her.

Section 18. Grounds for recall or cancellation of COC. At anytime an issued COC is still subject to validation and can be declared null and void in accordance with these guidelines, to wit:

a. A formal complaint filed before any NCIP office, by a particular ICCs/IPs against the issued COC of an individual claiming IP membership of the same IP Community, and
b. Later discover of fraudulent support documents of COCs.

Section 19. Repealing Clause. The Administrative Order repeals NCIP AO 2, Series of 2019. The provisions of other Circulars, Memoranda, and Administrative Orders issued by the Commission, inconsistent herewith or contrary to the provisions hereof are hereby repealed or modified accordingly.

Section 20. Effectivity. These guidelines shall take effect fifteen (15) days after its publication in the Official Gazette, or in any (2) newspapers of general circulation, or upon filing with the Office of the National Administrative Register of the University of the Philippines Law Center. Approved this 10th day of October, 2019, in Baguio City.

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